

Little Flower Kinder Garten School vs The State Of West Bengal Service Through ... on 30 June, 2025

Item No.01

Court No.1

BEFORE THE NATIONAL GREEN TRIBUNAL
EASTERN ZONE BENCH, KOLKATA
(THROUGH PHYSICAL HEARING WITH HYBRID MODE)

Original Application No.96/2025/EZ

Little Flower Kinder Garten School

Applicant(s)

Versus

State of West Bengal & Ors.

Respondent(s)

Date of hearing: 30.06.2025

CORAM: HON'BLE MR. JUSTICE B. AMIT STHALEKAR, JUDICIAL MEMBER
HON'BLE DR. ARUN KUMAR VERMA, EXPERT MEMBER

For Applicant(s) : Mr. Bikash Shaw, Advocate (in Virtual Mode)

ORDER

1. Heard Mr. Bikash Shaw, learned Counsel appearing (in Virtual Mode) for the Applicant.
2. This Original Application has been filed by the "Little Flower Kinder Garten School" at Bajimolla, through its President making allegations of environmental pollution against the Respondent No.9, viz. M/s Nataraj Hydrocarbons Pvt. Ltd.
3. The allegation in the Original Application is that the Respondent No.9 has set up a plastic oil manufacturing plant from waste plastic which is causing huge air pollution in the Village and Mouza - Chotokhanpur, P.O.- Belmuri, P.S. - Dhaniakhali, District - Hooghly where the said industry is situated.
4. It is stated that the Respondent No.9 has obtained Consent to Establish from the West Bengal Pollution Control Board (WBPCB) for manufacturing Glass Fiber Reinforced Plastic Products but later on it obtained a fresh Consent to Establish for manufacturing Reprocessed Plastic Granule and in violation of the said "Consent to Establish", the Respondent No.9 has started manufacturing plastic oil from waste plastic thereby causing huge air pollution.
5. It is also alleged that the Respondent No.9 has not obtained any Consent to Establish and/or Consent to Operate from the West Bengal Pollution Control Board for running the business of

manufacturing of Plastic Oil from the Waste Plastic Material.

6. It is also stated that the Applicant had complained to the West Bengal Pollution Control Board on 09.04.2024 and subsequently on 05.06.2024 in this regard and thereafter the West Bengal Pollution Control Board vide its Order dated 16.07.2024 had directed for immediate closure of the said polluting industry of the Respondent No.9; the electricity connection of the unit was also ordered to be disconnected forthwith and the West Bengal State Electricity Distribution Company Limited (WBSEDCL) was also directed to take necessary steps for disconnection of electricity of the unit but it is alleged that till date neither the West Bengal State Electricity Distribution Company Limited (WBSEDCL) nor the Police Officials have taken any steps to execute the said order of closure of the said polluting industry and therefore, the Applicant School was compelled to submit another letter on 29.07.2024 but no action has been taken till date.

7. Matter requires consideration.

8. Issue notice to the Respondents, returnable within four weeks.

9. Mr. Sibojyoti Chakrabarti, learned Counsel who is present in Court, accepts notice on behalf of the Respondent Nos.1, 2, 7, 8 and 10, State Respondents, Government of West Bengal.

10. Mr. Dipanjan Ghosh, learned Counsel appearing (in Virtual Mode), accepts notice on behalf of the Respondent Nos.3, 4, 5 and 6, West Bengal Pollution Control Board represented by its Chairman, Member Secretary, the Officer on Special Duty (Operation and Execution), Department of Environment and the Environmental Engineer & In-charge respectively.

11. Issue notice to the Respondent No.9, M/S Nataraj Hydrocarbons Pvt. Ltd., through its Director, having its factory at Village and Mouja- Chotokhanpur, P.O.- Belmuri, P.S.- Dhaniakhali, District - Hooghly, private respondent, returnable within four weeks.

12. All the Respondents shall file their counter-affidavits within four weeks

13. The Counsel for the Applicant shall serve e-copy/soft copy of the Original Application along with all its annexures upon Mr. Sibojyoti Chakrabarti and Mr. Dipanjan Ghosh, learned Counsel for the Respondents within 24 hours.

14. List on 01.08.2025.

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B. Amit Sthalekar, JM Dr. Arun Kumar Verma, EM June 30, 2025,
Original Application No.96/2025/EZ OM